

Dispute Chamber

Decision on the merits 130/2024 of October 11, 2024

File number: DOS-2023-04835

Subject: complaint regarding the unlawful and disproportionate processing of personal data related to the use of the MOBIB card

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Messrs. Dirk Van Der Kelen and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

The defendant:

Flemish Transport Company - De Lijn, with registered office at Motstraat 20 – 2800 Mechelen, with company number 0242.069.537, represented by Mr. Bastiaan Bruyndonckx and Mr. Liese Kuyken, hereinafter "the defendant".

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I. Facts and procedure

1. The subject of the complaint concerns the unlawful and disproportionate processing of personal data related to the use of the MOBIB card.

2. On November 23, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant. The complainant objected to the mandatory validation of his subscription with each use of a vehicle from the defendant, as this allowed the defendant to reconstruct his habits over the last six months. After a request for access, the complainant received scans of his subscription, in which he noted that the following data from the last six months were processed with each scan: GPS location where the vehicle was at that moment, the exact time of validation, the route, and the vehicle number of the vehicle on which he scanned, ...

"Based on these scans, the entire executed route can be reconstructed:

a) Only on Monday, Thursday, Friday, the route is taken in the morning with De Lijn from X (departing around 06:20) via Y (with transfer) to Z.

b) Only on Thursday, Friday, the route is taken in the evening from Z (departing around 16:05) towards Y with transfer towards X.

c) Only on Monday evening is there a deviating scenario and the route is taken from Z (departing around 16:05) towards Y with transfer towards A to the end of the [street] to depart from there in the evening, usually with a transfer towards X."¹

Furthermore, the complainant questioned whether the use of a passport photo on the MOBIB card was necessary for the purpose of this card. Finally, the complainant stated that he did not know what data was stored on the chip of the MOBIB card, nor what data was processed in the event that the MOBIB card is validated in the vehicle of the defendant.

3. On December 4, 2023, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 WOG and was forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

4. On January 23, 2024, the parties involved were notified by registered mail of the provisions as

mentioned in Article 95, § 2, as well as those in Article 98

1 Document 4 of the inventory of the Dispute Chamber: Email with attachments, p 1-2.
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WOG. They were also informed pursuant to Article 99 WOG of the deadlines for submitting their defenses. The scope of the case was established on the following alleged infringements:

- infringement of Article 5.1.c) GDPR, due to a violation of the principle of data minimization by requiring the scanning of the MOBIB card at every boarding and transfer; and
- infringement of Article 6.1 read in conjunction with Article 6.4 GDPR, due to the requirement to scan the MOBIB card; and
- infringement of Articles 5.1.a), 12, 13, and 14 GDPR, due to insufficient information provided to travelers regarding the data collection occurring through the scanning of the MOBIB card; and
- infringement of Article 25 GDPR, due to a violation of the principle of data protection by design and by default.

The deadline for receipt of the respondent's statement of defense was set for March 5, 2024, the deadline for the complainant's reply was set for March 26, 2024, and the deadline for the respondent's rejoinder was set for April 16, 2024.

5. On January 29, 2024, the complainant electronically accepted all communications regarding the case and indicated that he did not wish to make use of the opportunity to be heard, in accordance with Article 98 WOG.

6. On January 29, 2024, the respondent electronically accepted all communications regarding the case, requested a copy of the file (Article 95, § 2, 3° WOG), which was provided to her on January 31, 2024, and indicated that she wished to make use of the opportunity to be heard, in accordance with Article 98 WOG.

7. On March 5, 2024, the Dispute Chamber received the respondent's statement of defense.

8. On March 25, 2024, the Dispute Chamber received the complainant's reply. This contained the following grievances:

- a. The placement of his photo on the MOBIB card would not be necessary;
- b. The respondent would not be transparent about which personal data she is currently processing;
- c. The mandatory scanning of the MOBIB card would not be necessary;
- d. The continued registration of his validation data after the withdrawal of his consent for the service 'personalized travel information' would not be lawful;
- e. The respondent would share data with third parties, which was not part of the initial complaint;
- f. The respondent refused to delete the complainant's personal data, which was not part of the initial complaint.

9. On April 16, 2024, the Dispute Chamber received the synthesis of the respondent's rejoinder.

a. There is no infringement of Article 5.1.c) of the GDPR because:

- the MOBIB card only contains adequate, relevant, and necessary personal data for the identification of the traveler;
- the validation of the MOBIB card only involves a limited processing of non-sensitive personal data (the 'validation data');
- the validation data is processed for well-defined purposes;
- the validation data is pseudonymized as soon as possible;
- the processing is within the reasonable expectations of the use of an e-ticketing system.

b. There is no infringement of Article 6 of the GDPR because:

- the respondent relies on the public interest (Article 6.1.e) GDPR) and
- the respondent relies on consent (Article 6.1.a) GDPR).

c. There is no infringement of Articles 5.1.a), 12, 13, and 14 of the GDPR because there is a clear, complete, and intuitive privacy policy accessible.

d. There is no infringement of Article 25 of the GDPR because:

- data protection by design is guaranteed and
- data protection by default is guaranteed.

10. On May 7, 2024, the complainant added a document to the file. The respondent requested in a

letter dated May 23, 2024, to exclude this document as it was submitted after the deadline for conclusions, and the respondent would therefore not be able to defend against it.

11. On June 20, 2024, the parties were informed that the hearing would take place on July 4, 2024. In this letter, the Dispute Chamber requested the respondent to present additional arguments during the hearing regarding the following dispute point:

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“The Dispute Chamber requests you to provide further clarification during the hearing regarding:

1. the possible infringement of Article 5.1.c) of the GDPR and Article 25 of the GDPR: in paragraph 32 of the synthesis conclusion of the respondent, the Dispute Chamber reads: “a. an operational database Mobiguider, in which [...], which is linked to the customer database [...]”. Please clarify the necessity of linking the customer database with the operational database Mobiguider in the event that the traveler has not given consent for the service “Tailored Travel Information” in light of:

a. The privacy policy of De Lijn which states: “De Lijn does not check which individual customer uses public transport where”

b. The possibility of traveling anonymously where the link between the operational database Mobiguider and the customer database, and thus the identity of the traveler, is (technically and operationally) not necessary.

c. Article 44 septiesdecies of the Decree concerning the publicly governed externally autonomous agency Flemish Transport Company - De Lijn² and Article 37 of the decree concerning basic accessibility³.”

12. On July 1, 2024, the parties were informed that due to unavailability, the hearing was rescheduled to August 26, 2024.

13. On August 26, 2024, the parties were heard by the Dispute Chamber.

14. On September 2, 2024, the minutes of the hearing were presented to the parties.

15. On September 3, 2024, the Dispute Chamber received some comments from the complainant regarding the minutes, which it decided to include in its deliberation.

16. On September 5, 2024, the Dispute Chamber received some comments from the respondent regarding the minutes, which it decided to include in its deliberation.

2 Decree of July 31, 1990, concerning the publicly governed externally autonomous agency Flemish Transport Company – De Lijn.

3 Decree of April 26, 2019, concerning basic accessibility.

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II. Reasoning

II.1. Procedural Disputes

17. The Dispute Chamber points out that as an organ of a supervisory authority, it must be able to take into account all elements that have come to its knowledge in order to ensure a high level of data protection. This does not detract from the requirement that the procedure must meet the demands of adversarial proceedings and equality of the parties. The procedure provided under the subsection “deliberation and decision on the merits” in Article 98 et seq. WOG aims to provide a procedure based on adversarial principles. In administrative law, particular account must be taken of the duty to hear and the rights of defense.⁴

18. The Dispute Chamber excludes the document of May 7, 2024, submitted by the complainant, from the debates as it was submitted after the conclusion deadlines had expired, and this document does not provide a special reason to reopen the debates.

19. The Dispute Chamber takes the comments of the parties regarding the minutes of the hearing, specifically the letter from the complainant dated September 3, 2024, and from the respondent dated September 5, 2024, into its deliberation insofar as these comments are a relevant addition to the minutes of the hearing and do not introduce new elements that were not raised during the hearing.

II.2. Description of the Processing

II.2.1. The Services of the Respondent

20. The respondent offers transport services at the request of the Flemish government for a fee. The travel products of the respondent can be divided into two categories: personalized subscriptions and non-personalized tickets. In order to seamlessly connect the various means of public transport, the MOBIB card was introduced in 2008, on which the transport tickets of the various public transport companies could be placed. For the personalized transport tickets, the respondent uses the MOBIB card.

21. The respondent requires every traveler to validate their MOBIB card or ticket at the validation device when boarding a vehicle. With this obligation, the

4 Opdebeek I. and De Somer S., General Administrative Law: Foundations and Principles, Ed. 2, Antwerp, 2019 Intersentia, specifically Part V, Chapter III, Section 7 regarding the duty to hear.

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the respondent to enable the verification of the transport ticket, to provide the 'tailored travel information' service, and to collect raw transport data in order to demonstrate and enhance its services.

II.2.2. Customer Data

22. The respondent processes personal data for the identification of the traveler in order to provide and verify the correct individual transport tickets and to communicate with this traveler. For this data, the national registry number is processed for unique and certain identification of the traveler. This data is processed based on an agreement between the traveler and the respondent. There is the possibility to use the basic services of the respondent without having to share this data, namely by using a simple ticket or group ticket.

23. In the first ground of its synthesis conclusion, the respondent refers to the authorization from the national registry granted to it on May 18, 2011 (hereinafter 'deliberation 33/2011') to indicate which personal data is processed for the creation and management of the MOBIB card:

- Name and surname
- Gender
- Main residence (street, house number, apartment number, postal code, and municipality)
- Date of birth
- Date of death
- E-ID photo

The respondent has also included the privacy statement in its synthesis conclusion. In this privacy statement, the following personal data is mentioned that is processed in the context of subscriptions under the subject 'issuing transport tickets and managing customer records':

- Name and surname
- Gender
- Date of birth

5 Deliberation RR no. 33/2011 of May 18, 2011, regarding 'request from the Flemish Transport Company – De Lijn to extend the authorization granted by Royal Decree of September 5, 1994 – which was already expanded in deliberations RR nos. 04/2006 and 39/2007 – and to gain access to the photos stored in the Register of Identity Cards and the Register of Foreigners' Cards (RN/MA/2011/009), paragraph 13.

6 Document 23 in the respondent's bundle: Privacy Policy of De Lijn.

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- Address
- Family composition
- Contact details (mobile phone and email)
- Photo
- National registry number

- Customer type (social status, disability)

II.2.3. Validation Data

24. Both the general travel conditions and the general sales conditions of the respondent require each traveler to validate their transport ticket upon boarding a vehicle of the respondent. To validate, the MOBIB card or the non-personalized ticket must be held against the validation device in the respondent's vehicle. The validation data "is logged in the system of De Lijn at the moment the MOBIB card establishes a connection with the validation device."

25. At the time of validation, the following data is processed according to the respondent:

- Identification number of the MOBIB card
- Transport ticket
 - o Validity period
 - o Start date
 - o any remaining rides
- Date and time of validation
- Location of validation
- Line number
- Zone
- Ride order
- Ride

7 Document 3 in the respondent's bundle: Previous General Travel Conditions De Lijn dated September 1, 2022.

8 Document 1 in the respondent's bundle: General Sales Conditions De Lijn.

9 Synthesis conclusion of the respondent, paragraph 30.

10 Ibid.

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- ID of the driver
- Vehicle number

26. After his request for access on October 10, 2023, the complainant received a table with his validation data. The following data was included:

- Date and time of validation
- GPS coordinates at the time of validation
- Bus line on which validation occurred
- Identity number of the vehicle
- 'position ID'
- 'stop ID'

II.2.4. The MOBIB Data

27. In order to allow the traveler to efficiently and easily use all public transport services, the MOBIB card was introduced in 2008. This personal MOBIB card contains an electronic chip "that stores information about the type of transport ticket loaded onto it, as well as the identification data of the holder." This customer data is combined on the MOBIB card with a limited set of validation data, namely the last three validations. Validation with this MOBIB card allows for on-site verification of the travel tickets of the traveler.

28. The Disputes Chamber notes that the following data can be found on this MOBIB card:

Visible on the card itself:

name, surname, date of birth, identification number of the MOBIB card, expiration date of the MOBIB card, and a photo of the holder of the MOBIB card.

On the chip of the card:

name, surname, gender, postal code, language, photo of the holder, identification number of the MOBIB card, serial number, expiration date of the MOBIB card, active or deactivated status, the transport tickets linked to the identification number of the MOBIB card per

11 Document 4 from the inventory of the Disputes Chamber: Email with attachments.

12 Synthesis conclusion of the respondent, paragraph 4.

13 This data is compiled from data in the synthesis conclusion of the respondent on one hand and from the issuer of the MOBIB card, as found in Annex 6 of the complainant's documents, on the other hand.

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Transport Company

and,

for

the

Respondent,

the

validation data of the last three validations.

II.2.5. The Databases of the Respondent

29. Based on the synthesis conclusion of the Respondent and elements from the hearing, the Dispute Chamber finds that the Respondent's system consists of four databases relevant to this case:

- The 'customer database', in which the necessary data of the traveler is stored based on the agreement between the traveler and the Respondent in order to issue a valid subscription to the traveler.
- The operational database 'Mobiguider' in which all validation data is stored when it is transmitted from the validation device in the vehicle to the Respondent's system. Mobiguider contains all validation data of all travelers across the entire territory covered by the Respondent for a period of six months. The Mobiguider is linked to the customer database.
- The 'ODS', which is an exact copy of the Mobiguider with the aim of "limiting reporting and queries in the operational database and being independent of limited changes in the schedule that do not impact reporting."
- A database (hereinafter 'third database') where the validation data is stored in pseudonymized form.

II.3. The Complaint

30. The complainant is a customer of the Respondent and has a subscription. Initially, the complainant had given consent for the processing of his personal data in the context of the service 'tailored travel information'. He withdrew this consent on October 7, 2023. After a request for access to his personal data, the complainant found that the Respondent was able to link his validation data to his identity, even after he had withdrawn his consent for the service 'tailored travel information'. The complainant demonstrates this by attaching the table of his validation data from May 3 to October 27, 2023 (thus both before and after the withdrawal of his consent) to the documents. The complainant judges that the Respondent, based on this validation data, combined with his MOBIB and customer data, can fully reconstruct his travel route, even after he had withdrawn his consent for the service 'tailored travel information'; the complainant experiences this as a serious violation of his privacy.

31. The complainant primarily opposes the mandatory registration and the operation of his validation data with each use of a vehicle from the Respondent. Through this obligation, the Respondent is indeed able to analyze his travel habits from the last six months without the complainant having given consent for this. During the hearing, the complainant refined his complaint and opposes the logging of his identity and location in the Respondent's system. Furthermore, the complainant states that he has not been sufficiently informed about the various processing of personal data that the Respondent carries out with the MOBIB card. Finally, the complainant opposes the visible placement of his photo on the MOBIB card.

II.4. Responsibility for Processing the Validation Data

32. The Dispute Chamber finds that there is no disagreement regarding the identification of the data controller in this case. The Respondent is (co)controller for the customer data, the validation data, and the MOBIB data.

33. Article 37, §3, paragraph 4 of the decree regarding basic accessibility of April 26, 2019 (hereinafter

“basic accessibility decree”) and Article 44terdecies of the decree regarding the publicly governed external autonomous agency Flemish Transport Company - De Lijn of July 31, 1990 (hereinafter “founding decree”) both designate the Respondent as the data controller.

34. The initial complaint was clearly directed against the Respondent, and any discussion regarding the data responsibility of any other potential data controllers was not part of the scope of the initial complaint. Moreover, the data responsibility was not contested by the Respondent itself. The Dispute Chamber will not address the existence of any co-data controllers in this case.

II.5. Lawfulness of the Processing of the Validation Data (Article 6.1 in conjunction with Article 6.4 of the GDPR)

35. The Dispute Chamber reminds that pursuant to Article 5.1.a) of the GDPR, personal data must be processed lawfully, fairly, and transparently. This

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means that the processing must take place based on the grounds for processing as defined in Article 6.1 of the GDPR. When personal data is processed lawfully, it must be done properly. Finally, it must be clear for what purposes personal data is being processed and how this occurs. It is the responsibility of the data controller to indicate a legal basis for their processing.¹⁷

II.5.1. Relevant Legislation

36. Decree Administrative Decree of December 7, 2018 (hereinafter ‘Administrative Decree’)

Article I.3

In this decree, the following is understood:

[...]

2° Flemish administration:

[...]

e) the privately organized externally autonomous agencies, with the exception of the investment companies of the Flemish government;

Article III.7

The publicly organized externally autonomous agencies are legal entities whose legal form does not comply with the mandatory provisions of private company or association law. The publicly organized externally autonomous agencies are established by decree.

37. Decree concerning the publicly organized externally autonomous agency Flemish Transport Company - De Lijn of July 31, 1990 (hereinafter “Establishment Decree”)

Article 2:

A public law association with legal personality is established under the name “Flemish Transport Company” [...].

The public law association established under the first paragraph is transformed without interruption of legal personality into a publicly organized externally autonomous agency as referred to in Article III.7 of the Administrative Decree, named Flemish Transport Company - De Lijn [...].

[...]

Article 3:

The [defendant] aims to carry out any activity that is directly or indirectly, wholly or partially related to the public urban and regional transport conducted in the Flemish Region, from or to this Region. The [defendant] can establish all activities within its normal operational area to which its personnel, installations, and equipment can be applied, insofar as these activities are related to public urban and regional transport, including accommodating peak demand moments for transport either by water.

[...]

Article 44quater, third paragraph:

The line inspectors may, for the purpose of establishing violations of the travel conditions, take the following measures with respect to passengers and third parties:

1° they are authorized to confiscate transport tickets or reduction cards;

2° they may gather information and conduct checks by questioning individuals and inspecting documents and other information carriers;

3° they may request the individuals to show their identity card. They may detain anyone who refuses to

show their identity card or who does not possess one until the police arrive.

Article 44terdecies:

The [defendant] is the data controller, as mentioned in Article 4, 7), of the General Data Protection Regulation, for the personal data processed for the purposes mentioned in Article 44sexiesdecies of this decree.

Article 44quinquiesdecies:

The data controller processes the following categories of personal data:

- 1° the identity data, including the identity card number, of the person mentioned in Article 44ter, § 1;
- 2° the contact details of the person mentioned in Article 44ter, § 1;
- 3° the bank details of the person mentioned in Article 44ter, § 1;
- 4° the national register number of the person mentioned in Article 44ter, § 1;

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- 5° the license plate of the person mentioned in Article 44ter, § 1, if the violation occurs with a vehicle;
- 6° photographs that may serve as evidence;
- 7° the previous violations committed by the person mentioned in Article 44ter, § 1;
- 8° the subscription details of the person mentioned in Article 44ter, § 1;
- 9° the name, first name, contact details, and date of birth of the parents and guardians or the persons who have custody of a minor as mentioned in Article 44ter;
- 10° the personal data necessary to draw up the report, including but not limited to the date and time of the observation, the report number, and the location of the inspection;
- 11° the staff number and identity, including the first name, last name, and office address of the line inspector or the sanctioning staff member;
- 12° the medical personal data that the person mentioned in Article 44ter, § 1, provides themselves in support of the defense;
- 13° the financial capacity of persons who have a subscription for increased compensation.

The Flemish Government may further specify the categories of personal data.

Article 44sexiesdecies:

The data controller processes the categories of personal data mentioned in Article 44quinquiesdecies of this decree for the following purposes in the execution of a task of general interest and the exercise of public authority, as mentioned in Article 6, paragraph 1, e), of the General Data Protection Regulation:

- 1° checking and seizing transport tickets or discount cards;
- 2° establishing violations of travel conditions;
- 3° establishing the following facts and actions:
 - a) facts and actions that cause nuisance on and around the vehicle of the Company;
 - b) facts and actions that disrupt or may disrupt the service;
 - c) facts and actions that pose a danger;
- 4° questioning the parties involved and inspecting documents and other information carriers;
- 5° drawing up and sending the report;

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- 6° imposing and collecting administrative fines and supervision and administration costs on a person as mentioned in Article 44ter of this decree;
- 7° making a final decision after processing any defenses from the offender against the proposed decision;
- 8° defending the Company in the context of procedures.

Article 44septiesdecies:

The data controller processes the categories of personal data mentioned in Article 44quinquiesdecies of this decree from the following categories of data subjects:

- 1° persons who commit a violation of the travel conditions mentioned in Article 2, 20°, of the basic accessibility decree;
- 2° persons who do not have a valid transport ticket or, where applicable, a validated transport ticket;

3° persons who commit the following actions:

- a) persons who cause nuisance on and around the vehicle of the Company;
- b) persons who disrupt or may disrupt the service;
- c) persons who pose a danger;

4° line inspectors;

5° sanctioning staff members;

6° the parents and guardians or the persons who have custody of a minor as mentioned in Article 44ter of this decree.

Article 44duodevices:

The [respondent] may communicate the personal data to the following third parties for the purposes mentioned in Article 44sexiesdecies:

1° the police, if an additional finding is necessary given the facts;

2° the National Register or the Vehicle Registration Service, to verify whether the personal data provided by the person in question is correct and to supplement any missing but necessary personal data;

3° the Administrative Fines Service, to determine the administrative fines and supervision and administration costs;

4° a towing service, if a vehicle needs to be towed;

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5° bailiffs, to further process the administrative fines and supervision and administration costs or to conduct a solvency investigation for individuals with a subscription for increased reimbursement before the forced collection is initiated;

6° lawyers and courts, if the administrative fines and supervision and administration costs are contested;

7° the Flemish Ombudsman, if they intervene in a dispute.

The Flemish Government may further determine the modalities for the exchange of personal data.

38. Decree on Basic Accessibility of April 26, 2019 (hereinafter "decree on basic accessibility")

Article 37:

§ 3. The operators of the core network and supplementary network, the operator for public passenger transport by water, and the Mobility Center may process personal data of travelers and third parties for the purpose of:

1° efficient operation of public transport services, facilitating combined mobility;

2° promoting public passenger transport and combined mobility;

3° statistical purposes for public passenger transport and overall mobility policy, to map the evolution of passenger mobility, transport flows, modal distribution, and traffic safety.

Insofar as the data mentioned in the first paragraph, 3°, contains personal data, these will be anonymized as much as possible and, in subordinate cases, pseudonymized.

The Mobility Center and the operators of the core network and supplementary network, as well as the operator for public passenger transport by water, process personal data mentioned in Article 4, 1), of the General Data Protection Regulation, and the personal data mentioned in Article 9 of the aforementioned regulation.

The operators of the core network and supplementary network, the operator for public passenger transport by water, and the Mobility Center qualify as data controllers within the meaning of Article 4, 7), of the aforementioned regulation for the processing of the personal data mentioned in this article.

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The data controller is subject to the obligations mentioned in Article 5, 2, of the aforementioned regulation that apply to them.

The data controller instructs their processors to inform the individuals concerned about the processing of their personal data and to ensure effective implementation of the rights granted to the data subjects, as mentioned in Chapter III of the aforementioned regulation.

The data collected and processed for the purposes mentioned in the first paragraph will be retained

for:

1° five years, for the purpose mentioned in the first paragraph, 1°;

2° one year after termination of the contract with the data subject, for the purpose mentioned in the first paragraph, 2°;

3° five years, for the purpose mentioned in the first paragraph, 3°.

The Flemish Government determines the rules for the processing of personal data and the appropriate safeguards for the rights and freedoms of the data subjects.

39. Decision of the Flemish Government determining the travel conditions and the rules for enforcement by the VVM – De Lijn of September 16, 2022 (hereinafter 'decision on travel conditions and enforcement'):

Article 2:

The [respondent] may, for the exercise of its control powers regarding the transport tickets, determine the conditions for the validity and validation of the transport tickets.

Article 4:

The staff of the [respondent] ensures that travelers, and the public in general, comply with the rules mentioned in Articles 6 to 8.

Article 7:

§1. As soon as the traveler steps onto the vehicle of the [respondent], they are in possession of a transport ticket that is valid and, if applicable, has been validated for the journey. The transport ticket is valid for the entire journey they undertake with it in accordance with the validity conditions determined by the [respondent] in accordance with Article 2.

The traveler can always prove their identity.

§2. If the [respondent] indicates in the validity conditions determined in accordance with Article 2 that a transport ticket must be validated, the ticket is validated...

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The traveler must validate the transport ticket as soon as he steps onto the vehicle of [the respondent].

§3. The traveler can show the validated transport ticket at any time during the journey to the line inspectors.

II.5.2. Position of the complainant

40. Since the complainant believes that the validation data seriously infringes on his privacy, he poses the following question: "On what grounds does De Lijn require that the card be scanned at every boarding of a transport vehicle [...]".¹⁸

41. The complainant argues that he possesses a valid transport ticket in the form of a subscription that was prepaid and is still within the validity period. This transport ticket does not need to be validated for each trip like a single-journey ticket. He disputes the necessity of point 2 of the General Terms and Conditions¹⁹ of the respondent, which states that scanning a carrier of this valid transport ticket is necessary to make his transport ticket valid. He also contests that the validation of his MOBIB card, and thus the processing of his validation data, can rely on Article 7 of the Decision on Travel Conditions and Enforcement. The complainant believes that the processing of his validation data is not permitted on the grounds of public interest as proposed by the respondent in her email of October 31, 2023²⁰.

42. Furthermore, the complainant argues that the processing of the validation data after October 7, 2023, could no longer rely on consent since he had withdrawn his consent for the service 'tailored travel information' on that day. However, in the overview of his validation data²¹ that he received from the respondent after his request for access, the complainant found that his validation data was still being processed in the same manner after October 7, 2023.

II.5.3. Position of the respondent

43. The respondent argues in the synthesis conclusion of her second argument the legality of validating the MOBIB card at every boarding and transfer. Since the processing of the validation data occurs for various purposes, the respondent relies on different legal grounds.

44. First, the processing of the validation data serves the public interest in validating and checking transport tickets and in imposing sanctions in case of non-compliance with the 'general terms and

conditions'. The respondent refers to:

- Article 37 of the 'decree on basic accessibility' which mentions the purpose of processing personal data by the respondent in the third paragraph. The respondent can process personal data "with a view to efficient operation of public transport services [...]".
- Article 44quater of the 'founding decree' which grants inspectors the authority to process personal data as they may gather information and carry out checks and for that purpose "take cognizance of documents and other information carriers".
- Article 7 of the 'decision on travel conditions and enforcement' which allows the respondent to require travelers to validate their transport ticket: "If [the respondent] [...] indicates that a transport ticket must be validated, the traveler validates the transport ticket as soon as he steps onto the vehicle of De Lijn". The respondent has been assigned a statutory task that falls within the public function she performs, and this task cannot be executed without processing the validation data. If the respondent cannot process this data, she loses part of her revenue as "the lack of control increases the likelihood of fare evasion"²². This loss could have a "serious impact on the organization of public transport"²³ and would constitute a "misallocation of public resources"²⁴.

45. Secondly, the processing of the validation data serves the public interest in organizing service delivery and adjusting according to the needs of travelers. The respondent refers to:

- Article 37 of the 'decree on basic accessibility' which speaks of processing personal data with a view to (1) "efficient operation of public transport services", (2) "promoting public passenger transport and combined mobility", and (3) "statistical purposes of public passenger transport and overall mobility policy".

Personal data is therefore necessary to organize the service in general and to adjust transport plans according to the needs of travelers.

18 Document 2 of the inventory of the Disputes Chamber: Complaint and annexes – email of November 23, 2023, paragraph 3.

19 Document 1 in the respondent's document bundle: General Terms and Conditions De Lijn.

20 Document 15 in the document bundle of the respondent: Email De Lijn to Complainant dated October 31, 2023.

21 Document 4 of the inventory of the Disputes Chamber: Email with attachments – attachment 'validation data card'.

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22 Synthesis conclusion of the respondent, paragraph 53.

23 Ibid.

24 Ibid.

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46. Thirdly, the respondent serves the public interest with the processing of validation data by improving data flows, the processing of statistical data, and reporting to the Flemish Government. The respondent refers to:

- Article 37 of the 'decree on basic accessibility' which speaks of processing personal data for (3) "statistical purposes of public transport and overall mobility policy."

With the validation data, the respondent can report to the Flemish Government, which is an obligation under the 'Public Services Contract between De Lijn and the Flemish Government / 2023-2027'²⁵.

47. Finally, the respondent processes the validation data based on the consent of the traveler for obtaining tailored travel information: "In this way, the traveler receives updates about the services that may impact the individual travel route of the traveler"²⁶.

II.5.4. Assessment of the Dispute Chamber

Legal Basis of Consent in the Context of the 'Tailored Travel Information' Service

48. The respondent notes in its synthesis conclusion that the complainant had given his consent on August 25, 2021, in accordance with Article 6.1.a) of the GDPR for the processing of his personal data in the context of the 'tailored travel information' service²⁷. The complainant does not dispute that his

validation data could be processed at that time to receive updates regarding his travel routes. However, the complainant had withdrawn this consent on October 7, 2023, which is also acknowledged by the respondent. The Dispute Chamber establishes in the table of validation data provided by the complainant in the documents²⁸ that validation data of the complainant was still being processed even after October 7, 2023. Therefore, the processing of this validation data no longer relies on the legal basis of consent under Article 6.1.a) of the GDPR. Since there is no dispute regarding the legal basis of consent, the Dispute Chamber will not delve further into this legal basis in the context of the 'tailored travel information' service for the processing of the complainant's validation data.

25 Document 26 in the respondent's document bundle: Public Services Contract between De Lijn and the Flemish Government, 2023-2027.

26 Synthesis conclusion of the respondent, paragraph 59.

27 Ibid, paragraph 60.

28 Document 4 of the inventory of the Dispute Chamber: Email with attachments.

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Legal Basis of Public Interest

49. For a data controller to invoke Article 6.1.e) of the GDPR to process personal data, this processing must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. In such cases, the processing must always have a basis in the law of the European Union or that of the relevant member state, which must also specify the purpose of the processing. It must therefore be examined whether these conditions are met in this case.

50. Pursuant to Article 6, paragraph 3 and Recital 45 of the GDPR, processing based on Article 6.1.e) of the GDPR must meet the following conditions:

- The data controller must be tasked with the performance of a task in the public interest or a task that forms part of the exercise of official authority based on a legal basis, regardless of whether that is enshrined in the law of the European Union or in the law of the member states;
- The purposes of the processing must be laid down in the legal basis or must be necessary for the execution of the task in the public interest or the exercise of official authority.

51. In parallel to the provisions of the GDPR regarding tasks in the public interest, there are also provisions in Belgian law that impose similar conditions on public authorities entrusted with administrative powers.

52. Article I.3 of the 'Administrative Decree' defines privately structured external autonomous agencies as part of the Flemish administration. Article 2 of the 'Establishment Decree' defines the respondent as a publicly structured external autonomous agency. The legal basis for processing personal data must be assessed in light of the principle of the allocation of administrative powers, the principle of the specialty of legal entities, and the legality principle, which determine the conditions under which the administration can intervene in the right to protection of personal privacy, of which the right to protection of personal data is a part²⁹.

53. According to the principle of the allocation of administrative powers, which is enshrined in Article 105 of the Constitution and Article 78 of the Special Law on

29 The CBPL has already pointed this out in its opinion on the preliminary draft law that has become the WVG. See CBPL, Opinion No. 22/2018, p.44.

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Reform of the Institutions of August 8, 1980, a public transport company has no other powers than those formally granted to it by the Constitution and the laws and decrees issued in that context.

54. Furthermore, the principle of specialty for legal entities stipulates that each entity with legal personality may only act to achieve the purpose or purposes for which it was established, provided that

only a legislative norm can impose a public service mandate on a legal entity. The Council of State noted in its opinion on the draft law "regarding the protection of natural persons with regard to the processing of personal data" that "the transfer of data from one government agency to another constitutes a form of interference with the right to the protection of the personal sphere of the individuals concerned. Under Article 8 of the European Convention on Human Rights and Article 22 of the Constitution, as interpreted in the established case law of the Constitutional Court, such interference must in particular have a legal basis, be proportionate to the pursued objective, and be organized in a sufficiently clear manner so that it is foreseeable for the citizen."³⁰

55. In short, a public transport company may, in principle, only process personal data if such processing is necessary for compliance with an obligation imposed on one of the data controllers by or under a legal provision (Article 6.1.c of the GDPR) or if such communication is necessary for the performance of a task of general interest assigned to one of the data controllers by or under a law (Article 6.1.e of the GDPR).³¹

56. In relation to the formal legality principle, both the Constitutional Court and the Council of State have argued in their advisory practice on several occasions that this delegation must be sufficiently precise. For instance, the Council of State stated in its opinion 68.936/AV of April 7, 2021, in paragraph 71:

"The Constitutional Court has ruled regarding matters reserved to the legislator and more specifically also regarding a number of fundamental rights that the formal legality principle implies that it is up to the legislator itself to determine the 'essential elements' of the restrictions imposed on fundamental rights as well as of the criminalizations. The Court states: 'A delegation to another authority is not contrary to the legality principle as long as the authorization is precisely defined and relates to the implementation of measures whose essential elements have been established in advance by the legislator.' In the aforementioned opinion 62.592/3, the Council of State stated: 'Even if it can be assumed that these restrictions of fundamental rights, given their nature, do not need to be established in a very detailed manner by the legislator itself, they must be supported by a sufficiently precisely defined and framed delegation from the legislator to the King. A mere general authorization is therefore not sufficient; explicit and specific authorization provisions are necessary.'"³²

Article 6.2 of the GDPR allows for the introduction of more specific provisions. Both the Council of State³³ and the Constitutional Court³⁴ have determined that the following elements constitute the 'essential elements' of the processing of personal data:

- The category of processed data;
- The category of data subjects;
- The objective pursued by the processing;
- The category of persons who have access to the processed data;
- The maximum retention period for the data.

Task of General Interest – Granting of Administrative Powers

57. The purpose and powers of the defendant are established in Article 3 of the 'establishment decree': "any activity that is directly or indirectly, wholly or partially related to the common urban and regional transport [...]" and "the company may establish all activities within its normal operational area to which its personnel, its facilities, and its equipment can be applied, insofar as these activities are related to common urban and regional transport, including the management of peak demand periods [...]."

Legal Basis Regarding the Task of General Interest – Legality and Specialty Principles

³² Opinion of the Council of State no. 68.936/AV of April 7, 2021, regarding a draft law 'concerning the measures of administrative police during an epidemic emergency situation,' paragraph 71.

³³ Ibid, paragraph 101.

³⁴ Constitutional Court March 10, 2022, no. 33/2022, B.13.1.; Constitutional Court September 22, 2022, no. 110/2022, B.11.2.

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58. According to recital 41 of the GDPR, the legal basis or legislative measure must be clear and precise, and its application must be predictable for the data subjects, in accordance with the case law of the Court of Justice of the European Union and the European Court of Human Rights (hereinafter

'ECHR'). In the Rotaru judgment, the ECHR further defined the concept of predictability of the legal basis. Since that case concerned surveillance systems of a state's security apparatus, the context differs from the present case. In other cases, the ECHR has indicated that it can be guided by these principles; however, it holds that these criteria, which were established and followed in the specific context of that particular case, cannot be applied as such to all cases.

59. The activities of the respondent are organized based on two decrees: the 'decree on basic accessibility' and the 'establishment decree'. The Dispute Chamber establishes that there are four purposes for which the legislator has determined that personal data may be processed:

- 1: validating, controlling, and sanctioning transport tickets from the 'establishment decree';
- 2: the efficient operation of public transport services from the 'decree on basic accessibility';
- 3: promoting public transport from the 'decree on basic accessibility';
- 4: statistical purposes from the 'decree on basic accessibility'.

60. Regarding the validation, control, and sanctioning of transport tickets, the legislator has specified the following essential elements in the 'establishment decree':

- Article 44quinquiesdecies: the categories of personal data that may be processed;
- Article 44sexiesdecies: the purposes of processing the personal data;
- Article 44septiesdecies: the categories of data subjects whose personal data may be processed;
- Article 44duodevicies: the categories of recipients of the personal data.

61. The Dispute Chamber notes that the legislator has failed to determine the category of persons who have access to the processed data and the retention period of the data in the decree.

35 ECHR, May 4, 2000, Rotaru v. Romania.

36 ECHR, September 2, 2010, Uzun v. Germany, § 66.

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In the explanatory memorandum of the 'draft decree containing various provisions on public transport, general mobility policy, road infrastructure and road policy, and water infrastructure and water policy, and containing a subsidy scheme to promote a modal shift in freight transport', the Dispute Chamber finds the following clarification regarding retention periods:

"The personal data shall not be retained longer than necessary for the achievement of the purposes.

The [respondent] retains the personal data:

- for up to one year after the closure of the file. [...];
- one year after the expiration of the limitation period in Article 44undecies of the decree of July 31, 1990."

In Article 44quater, paragraph 3, the Dispute Chamber finds an indication of the categories of persons who have access to the personal data, namely the inspectors of the respondent:

"The Line inspectors may, in order to establish violations of the travel conditions, take the following measures regarding passengers and third parties:

- 1° they are authorized to confiscate transport tickets or reduction cards;
- 2° they may gather information and exercise control by questioning individuals and inspecting documents and other information carriers;
- 3° they may ask the data subjects for their identity card. [...]"

62. Although the processing of personal data for the purpose of validating, controlling, and sanctioning appears prima facie lawful, the complaint and the conclusions do not in any way indicate that the complainant can be considered a data subject as defined in Article 44septiesdecies of the establishment decree, nor that the processing of the personal data complained of by the complainant occurs according to the purposes defined in Article 44sexiesdecies. The Dispute Chamber therefore holds that the processing of the complainant's validation data cannot rely on the legal basis of public interest as specified in the 'establishment decree'.

63. Regarding the purposes from the decree on basic accessibility, the legislator has specified the following essential elements in the decree:

- Article 37, §3, paragraph 1: the purposes of processing personal data.

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Article 37, §3, paragraph 6: the maximum retention period for the data

64. Article 37 was part of the initial ‘decree on basic accessibility’ that was established in 2019. This ‘decree on basic accessibility’ was, like the ‘founding decree’, amended by the ‘decree containing various provisions regarding public transport, general mobility policy, road infrastructure and road policy, and water infrastructure and water policy, and containing a subsidy scheme to promote a modal shift in freight transport’ of December 23, 2021. The Dispute Chamber notes that the legislator did not opt to amend the ‘decree on basic accessibility’ to establish the ‘essential elements’ for the processing of personal data so that the respondent could also lawfully rely on the processing ground of public interest for the purposes of this decree.

Necessity for the task of public interest

65. However, the Dispute Chamber has already pointed out in decision 149/2022 of October 18, 2022, that tasks of public interest or public authority with which data controllers are entrusted are often not based on precisely defined obligations or legislative standards that establish the essential characteristics of data processing. Rather, processing occurs on the basis of a more general authorization to act, such as for the fulfillment of a task that is necessary. This leads to the relevant legal basis often lacking specific provisions regarding the necessary data processing in practice. Data controllers who wish to rely on Article 6.1.e) of the GDPR based on such a legal basis must then verify whether the processing is necessary for the task of public interest and the interests of the data subjects.

66. The Court of Justice has addressed this necessity condition in the judgment Huber:

“Given the objective of providing equivalent protection in all Member States, the concept of necessity as it appears in Article 7(e) of Directive 95/46, which aims to provide a precise delineation for one of the cases in which the processing of personal data is permissible, must not have a meaning that differs from one Member State to another. It is therefore an autonomous concept of Community law, which must be interpreted in a manner that fully corresponds to the objective of the directive as described in Article 1, paragraph 1.”

67. The Advocate General has also stated in his conclusions that “[t]he concept of necessity has a long history in Community law and forms an integral part of the principle of proportionality. It implies that the authority that establishes a measure that infringes a right guaranteed by Community law in order to achieve a legitimate aim must demonstrate that this measure is the least restrictive means of achieving that aim. Furthermore, when the processing of personal data may lead to an infringement of the fundamental right to respect for private life, account must also be taken of Article 8 of the European Convention on Human Rights (ECHR), which guarantees the right to respect for private and family life. As the Court stated in the judgment *Österreichischer Rundfunk* e.a., a national regulation that does not comply with Article 8 ECHR cannot satisfy the requirement laid down in Article 7(e) of Directive 95/46. Article 8, paragraph 2, ECHR provides that interference with private life is permissible insofar as it pursues one of the objectives listed therein and is “necessary in a democratic society.” According to the European Court of Human Rights, the adjective “necessary” implies that there is a “pressing social need” for a particular action by the government and that the measure is proportionate to the legitimate aim pursued.”

68. This case law formulated with regard to Article 7(e) of Directive 95/46/EC remains relevant to this day. Article 6, paragraph 1, of the GDPR indeed adopts the wording of Article 7 of Directive 95/46/EC.

69. The Court of Justice clarified in the judgment *Schecke* that if there are realistic and less intrusive alternatives, the processing is not “necessary.”

70. The Dispute Chamber must therefore assess whether the processing of the validation data was necessary for the efficient operation of public transport services, the

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promoting public transport and statistical purposes and whether there were other, less invasive options

to pursue the aforementioned general interest.

71. The Dispute Chamber acknowledges the necessity for the respondent to establish statistics based on raw data in order to evaluate, demonstrate, and use effectively its resources as a basis for organizing public transport services. The validation data of all passengers on all vehicles is particularly suitable for compiling these statistics. Based on the statistical models calculated from this data, the respondent can efficiently organize public transport services and combined mobility so that the mission and objectives of the mobility policy set out in Articles 3, 4, and 5 of the 'basic accessibility decree' of the Flemish government can be achieved. Merely recording the activities (stops at stations, duration of the journey between stops, duration of the stop, etc.) of the (anonymous) resources of the respondent would not provide any information about the occupancy of these resources. The Dispute Chamber therefore sees no realistic and less intrusive alternatives that would enable the respondent to achieve its statistical objective.

72. Regarding the organization of the service, in other words, the objective of 'efficient operation of public transport services', the respondent states in its synthesis conclusion: "Thus, De Lijn uses this Validation data to check the occupancy of its vehicles and to respond maximally to the requests and needs of passengers by aligning its transport plans and deployed vehicles accordingly" and "Since the processing of Validation data for these purposes is aimed at gaining insight into figures (own emphasis) regarding all passengers and not one particular passenger, the data is always pseudonymized." During the hearing, the respondent further stated that "it was chosen [not] to have passengers scanned when disembarking from the vehicle, as this would be even more privacy-invasive for the passenger and it is sufficient to have a statistical estimate (own emphasis) of the occupancy rate based on the boarding data." The Dispute Chamber rules that this objective can be achieved by using the statistical, aggregated data generated by the respondent itself for the objective of 'statistical purposes'. The respondent states regarding the statistical purposes in its synthesis conclusion: "Based on numerical data, it can systematically and continuously evolve the offer (emphasis by respondent) and the necessary mechanisms can be provided to ensure this further development and to address environmental changes (substantial changes in passenger numbers or available resources)."

73. Recital 162 of the GDPR states that "the result of processing for statistical purposes does not consist of personal data, but of aggregated data." The respondent does not sufficiently argue why it must process personal data for the objective of 'efficient operation of public transport', especially considering that aggregated data is already available that is aimed at the same purposes. Furthermore, the Dispute Chamber notes that the respondent itself has been tasked with processing the validation data for statistical purposes by the legislator. It can therefore perform new statistical calculations itself if new statistical models are needed for the efficient operation objective, without the need to process validation data separately for this objective. The Dispute Chamber rules that the processing of personal data is not necessary to achieve the objective of 'efficient operation of public transport services'.

74. Regarding the objective of 'promoting public transport', the respondent does not argue in its synthesis conclusion why it needs the validation data, except for the service 'tailored travel information'. The respondent also does not argue why there is a need to process more personal data than the personal data obtained after consent for the service 'tailored travel information' and the aggregated data from the 'statistical objective'. The Dispute Chamber rules that the respondent cannot process personal data based on the general interest for the objective of 'promotion of public transport'.

II.5.5. Conclusion: no violation of Article 6.1, read in conjunction with Article 6.4 of the GDPR

75. The Dispute Chamber rules that the respondent has a legal basis of general interest to process the validation data of the complainant. This legal basis is based on Article 37, §3, 3° of the 'basic accessibility decree'. Processing the validation data of the complainant is necessary to create the statistical data that allows the respondent to achieve the other purposes of Article 37, §3 and enables the respondent and the Flemish government to conduct an efficient mobility policy.

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76. Since the validation data is collected by the respondent for the purposes of Article 37, §3, 3° of the

'basic accessibility' decree, there is no further processing of personal data as described in Article 6.4 of the GDPR.

II.6. Principle of Data Minimization (Article 5.1.c) of the GDPR) when scanning the MOBIB card at each boarding or transfer

77. According to the principle of minimal data processing, established in Article 5.1.c) of the GDPR, personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. Recital 39 of the GDPR adds: "Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means."

II.6.1. Relevant Legislation

78. Article 44quater, third paragraph of the 'establishment decree':

The line inspectors may, with a view to establishing violations of the travel conditions, take the following measures regarding passengers and third parties:

1° they are authorized to confiscate transport tickets or discount cards;

2° they may gather information and exercise control by questioning individuals and inspecting documents and other information carriers;

3° they may ask the individuals for their identity card. They may detain anyone who refuses to show their identity card or who does not have one in their possession until the police arrive.

II.6.2. Complainant's Position

79. The complainant believes that the inclusion of a photo on the MOBIB card is not necessary for the identification of the passenger. Both the General Travel Conditions⁴⁸ and the General Sales Conditions⁴⁹ indicate that a passenger must be able to present their identity card for identification purposes. The identity card also contains a photo, making the photo on the MOBIB card redundant.

80. The complainant also believes that scanning the MOBIB card with each use of a transport vehicle from the respondent is irrelevant since he already possesses a valid transport ticket that does not need to be validated and is not necessary for the core business of the respondent.

II.6.3. Respondent's Position

81. Regarding the photo on the MOBIB card, the respondent argues that the processing of the photo is based on 'deliberation 33/2011' granted by the then Commission for the Protection of Privacy (hereinafter 'CPP'). This deliberation stated that the use of the e-ID photo of the cardholder was justified because the purposes of the respondent aligned with the purposes of including the photo in the National Register, namely administrative simplification and the prevention of identity fraud.⁵⁰ Furthermore, the photo facilitates the control of transport tickets, allowing the inspector not to request the subscriber's identity card. The respondent believes that this way, it can avoid requesting the identity card.

82. Regarding the scanning of the MOBIB card, the respondent argues that the validation data does not contain more personal data than necessary, namely the identification number of the MOBIB card, the transport ticket, the time of validation, the location of validation with the line number, the zone, the ride order, the ride, the driver's ID, and the vehicle number. This scanning occurs only when boarding a vehicle, so the complete journey of the passenger cannot be traced.⁵¹ The validation data is stored in three separate databases, of which the operational database 'Mobiguider' is "linked to the customer database."⁵² The validation data of the last three validations is also stored on the MOBIB card to allow for control by authorized personnel. The purposes for processing the validation data are clearly defined: the control of the transport ticket, the organization of the service, the provision of tailored travel information for those who have given consent, and the fulfillment of obligations regarding statistical data. Regarding the organization of the service, the respondent clarifies that only pseudonymized data is used. Finally, the respondent refers to recommendation no. 01/2010 on the basic principles to be followed when using e-ticketing by public transport companies.

⁵⁰ Summary conclusion of the respondent, paragraph 25.

⁵¹ Ibid, paragraph 31.

⁵² Ibid, paragraph 37.

(hereinafter 'recommendation 01/2010')⁵³, which summarizes the reasonable expectations of such a system. The purposes of the respondent fall within these reasonable expectations.

II.6.4. Assessment of the Dispute Chamber

The photo on the MOBIB card

83. The Dispute Chamber notes that the authorization for the use of data from the national register, on which the respondent relies to demonstrate the necessity of the photo, dates back to 2011. This authorization was then issued by the then CBPL based on the 'law regulating a National Register of natural persons' of August 8, 1983, amended by the 'law amending the law of August 8, 1983 regulating a National Register of natural persons and the law of July 19, 1991 concerning population registers and identity cards' of March 25, 2003. Article 4 of the law of March 25, 2003 amended Article 5 of the law of August 8, 1983 and stipulated in the second paragraph that the sectoral committee made an assessment of whether the purposes for access to the data of the national register were “well-defined, clearly described, and lawful” and whether the data were “adequate, relevant, and not excessive in relation to the purposes.” The third paragraph of the same law also stipulated that the sectoral committee had to verify whether the processing of personal data was in accordance with the 'law of December 8, 1992 for the protection of privacy with respect to the processing of personal data' and “other pertinent standards regarding the protection of privacy or personal data.”

84. This authorization from 2011 allows for certain identification data to be included on the MOBIB card that can link the transport ticket to the correct person, which is necessary for the purpose of being able to control and sanction transport tickets. The e-ID photo was included in the authorization as one of these identification data. With this photo on the identification card, the inspector of the respondent is “certain that the identification card links the correct photo to the correct name, first name, date of birth, and place, thereby excluding identity fraud”⁵⁴.

85. The decree of April 26, 2019 'containing various provisions on mobility policy, public works and transport, traffic safety policy, and VVM – De Lijn' has inserted Article 44quater into the founding decree in Article 17. This article

53 Recommendation No. 01/2010 of March 17, 2010 regarding 'recommendation on the basic principles to be observed in the use of e-ticketing by public transport companies (A/2010/003).

54 Summary conclusion of the respondent, paragraph 25.

44quater, paragraph three states that the line inspectors “may ask the individuals for their identity card” specifically to exclude identity fraud. However, the respondent notes that “a photo on the subscription facilitates the inspection by the inspectors of De Lijn”⁵⁵ and that checking the photo via the MOBIB card is less privacy-invasive than requesting an identity card.

86. The Dispute Chamber rules that the use of the photo on the MOBIB card is still necessary for the two purposes as assessed by the 'deliberation 33/2011', namely administrative simplification and the prevention of identity fraud⁵⁶. Omitting the photo from the MOBIB card would necessitate the request for the identity card for every inspection, which would involve processing more personal data without it being necessary.

Regarding the validation data

87. The Dispute Chamber first reiterates that the purpose of processing the validation data of the complainant is determined in the 'decree basic accessibility': in this case, for statistical purposes. The Dispute Chamber has already ruled⁵⁷ that the respondent cannot lawfully process the personal data of the complainant for the purpose of validation, control, and sanctions from the 'founding decree', as the complainant does not fall within the target group for which these processes were included in the decree. The Dispute Chamber therefore does not further address the processing of the validation data on the MOBIB card itself, but does address the validation data that are processed in the three databases of the respondent, as indicated in its summary conclusion.

88. The respondent argues that it is required to improve “its knowledge and management of data flows for the Flemish government and to process statistical data regarding, among other things, passenger numbers and occupancy rates”⁵⁸ and “Based on numerical data, it can systematically and continuously evolve the offer and necessary mechanisms can be provided to ensure this development and to cope with environmental changes (substantial changes in passenger numbers or available resources)”⁵⁹. Finally, the respondent argues that “Reporting on the number of registered trips and which transport tickets were used for this is only possible through the validation

55 Ibid, paragraph 28.

56 Ibid, paragraph 25.

57 See paragraph 62 of this decision.

58 Summary conclusion of the respondent, paragraph 39.

59 Ibid, paragraph 40.

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to make the MOBIB card mandatory, both for a single ticket and for a subscription”⁶⁰.

89. The respondent bases these statistical data on the validation data of the travelers. Since this statistical data can also be generated with a ‘single ticket’ (i.e., a ticket where the traveler travels anonymously), the Dispute Chamber finds that the identity of the traveler is not necessary to achieve this purpose. However, the respondent argues that “Although preference is given to the anonymization of this personal data, it was nevertheless impossible for De Lijn, as this would not allow for tracking how often a traveler uses a transport ticket (for example, a subscription); information that De Lijn uses to adjust its transport offerings (e.g., fare modules) and to meet the accuracy requirements of the Flemish government”⁶¹. For these reasons, the respondent argues that each transport ticket must be separately identifiable, which the respondent achieves by also processing the identification number of the MOBIB card within the validation data. The Dispute Chamber rules that the respondent has no other options than to process all the validation data cited by the respondent in order to base the statistical calculations on sufficiently accurate and sufficiently rich raw data for the statistical objective.

II.6.5. Conclusion: no violation of Article 5.1.c) of the GDPR

90. The Dispute Chamber finds no infringement of Article 5.1.c) of the GDPR concerning the use of the photo of the holder of the transport ticket on the MOBIB card.

91. The respondent does not violate the principle of data minimization of Article 5.1.c) of the GDPR in the processing of the validation data. The personal data it processes are adequate, relevant, and necessary for the purposes for which they are processed.

II.7. Data protection by design and by default (Article 25 of the GDPR) regarding the processing of the validation data

92. The European legislator has provided an article in the GDPR that includes the concepts of ‘data protection by design’ and ‘data protection by default’ (“DPbDD”), in Dutch respectively ‘gegevensbescherming door ontwerp’ and ‘gegevensbescherming door standaardinstellingen’. Article 25 of the GDPR states:

“1. Taking into account the state of the art, the implementation costs, and the nature, scope, context, and purposes of the processing as well as the varying risks to the rights and freedoms of natural persons linked to the processing, the data controller shall, both when determining the means of processing and at the time of processing itself, implement appropriate technical and organizational measures, such as pseudonymization, designed to effectively implement the data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing to comply with the provisions of this Regulation and to protect the rights of the data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed. This obligation applies to the amount of personal data collected, the extent of their processing, the period for which they are stored, and their accessibility. These measures ensure, in particular, that personal data are not made accessible, without human intervention, to an indefinite number of natural persons.”

93. The EDPB has issued guidelines on 'DPbDD' in accordance with Article 70(1)(e) of the GDPR (hereinafter 'guideline 4/2019')⁶². The intention of 'DPbDD', according to the EDPB, is "to protect the rights of data subjects and to ensure that the protection of personal data is integrated into the processing."⁶³ Although this guideline is not a normative text, it can be used by the data controller as a methodology to assess this complex matter and as a tool in organizing its processing activities. Furthermore, this guideline can also assist in the argumentation within the framework of its accountability obligation under Article 5.2 of the GDPR. The Dispute Chamber will therefore use this guideline as a reference in its assessment so that this assessment creates a certain degree of predictability for the data controller(s).

62 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, available at the website https://www.edpb.europa.eu/system/files/2021-04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_nl.pdf

63 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, paragraph 7.

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94. I must also publish it. Given the agreement between the validation data processed based on consent and the validation data processed when consent was withdrawn, the Dispute Chamber has ruled that data protection by design and by default falls within the scope of the complaint. Article 25.2 of the GDPR states that "in principle, only personal data that is necessary for each specific purpose shall be processed." After the conclusions, the Dispute Chamber requested additional arguments regarding data protection by design and by default from the respondent in her invitation for the hearing: "The Dispute Chamber requests you to provide further clarification during the hearing regarding the possible infringement of Article 5.1.c) of the GDPR and Article 25 of the GDPR: in paragraph 32 of the respondent's synthesis conclusion, the Dispute Chamber reads: 'a. an operational database Mobiguider, in which [...], which is linked to the customer database⁶⁴ [...].'"

Please clarify the necessity of linking the customer database with the operational database Mobiguider in the event that the traveler has not given consent for the service 'Travel Information Tailored'; in light of:

- a. The privacy policy of De Lijn which states: "De Lijn does not check which individual customer uses public transport"
- b. The possibility to travel anonymously where the link between the operational database Mobiguider and the customer database, and thus the identity of the traveler, is (technically and operationally) not necessary.
- c. Article 44 septies decies of the Decree concerning the publicly organized externally independent agency Flemish Transport Company – De Lijn and Article 37 of the decree concerning basic accessibility."⁶⁵

II.7.1. Complainant's Position

95. Based on the received validation data, the complainant argues that the respondent continued to retain the same data after he had withdrawn his consent for the tailored travel information. The complainant sees no difference between processing based on consent or processing in the context of the public interest. Moreover, the complainant argues that the data was not pseudonymized after the withdrawal of his consent for the 'tailored travel information' service. The respondent was

64 The Dispute Chamber had also emphasized in bold in her invitation for the hearing.

65 Document 27 of the inventory of the Dispute Chamber: Invitation to the hearing.

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still able to transfer his validation data after he had withdrawn his consent.

96. Based on the same validation data, the complainant reconstructs his weekly travel habits to demonstrate that his privacy has been flagrantly violated.

II.7.2. Respondent's Position

97. The respondent states that she is aware of the obligation for data protection by design and by

default and the “embedding” of compliance with the principles of data protection in the creation of new technology. As examples of how this can be achieved, the respondent cites the design of the IT system aimed at minimizing data and a comprehensive and timely pseudonymization of personal data.⁶⁶

98. As necessary appropriate technical and organizational measures that are guaranteed and periodically evaluated, the respondent mentions:

- Awareness among the employees of the respondent.
- Pseudonymization of the validation data from the moment the personal data is no longer necessary for the verification of the transport ticket or for the tailored travel information service, provided the traveler has given consent for this.
- The use of pseudonymized data for statistical purposes. The respondent is aware of the preference for anonymized data for statistical purposes, but would not be able to meet certain accuracy requirements of the Flemish government in that case. The chosen form of pseudonymization would provide sufficient guarantees for the rights of data subjects by using “‘one way hashing’, where a ‘salt’ is added to each card number”⁶⁷.
- A strict access policy and traceability of the actions of a specific account.
- Other technical measures such as encryption, vulnerability management, logging and monitoring, secure development, pentesting, ethical hacking, network security, and disaster recovery.
- Organizational measures such as a security officer, a seven-member ICT security team, and the initiation of an ISO 27001 certification process.

⁶⁶ Synthesis conclusion of the respondent, paragraph 67.

⁶⁷ Synthesis conclusion of the respondent, paragraph 70.

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99. In the context of Article 25.2 of the GDPR, the respondent guarantees data protection by default settings by:

- Processing only personal data of the ordinary category that is strictly necessary and pseudonymizing this personal data from the moment the validation data no longer needs to be linked to the traveler, namely “when the data is only processed for the organization of the service provider and the fulfillment of the obligations regarding statistical data pursuant to the management agreement with the Flemish government.”⁶⁸
- Processing the identification number of the MOBIB card only for transport tickets that are strictly personal and enabling anonymous travel for various other types of transport tickets. In the case of a subscription, however, anonymous travel is no longer an option, which is also clearly stated in the General Travel Conditions.
- Only requiring the scanning of the MOBIB card when boarding a vehicle of the respondent and not when disembarking, thereby preventing the reconstruction of a traveler’s journey.
- Avoiding that “various types and frequencies of processing activities may be performed on the data”⁶⁹ and keeping the reasonable expectations of the data subject in mind.
- Retaining the validation data in non-pseudonymized form for a limited period of six months and implementing the legal retention periods.
- Providing access to personal data only on a ‘need to know’ basis, whereby employees only have access to the personal data that is strictly necessary for the performance of their tasks.

II.7.3. Assessment of the Dispute Chamber

100. The respondent did not address the request during the hearing to demonstrate in more detail that the processing has been designed with data protection by design and by default in mind. To assess whether the respondent complies with Article 25 of the GDPR, the Dispute Chamber will first analyze the elements that must be considered when assessing a system under Article 25.1 of the GDPR based on the documents from the respondent, after which it will evaluate the design and default settings per processing purpose.

Assessment Elements from Article 25.1 of the GDPR

101. Regarding the elements listed in Article 25, paragraph 1 of the GDPR that must be considered

when assessing whether a system meets the requirements of data protection by design and by default, the Dispute Chamber makes the following findings based on the documents and the hearing:

102. The respondent does not provide any arguments regarding a potential hindrance to data protection by design, based on the state of technology or implementation costs.

103. Regarding the nature of the processing, the respondent states that no sensitive or special categories of personal data are processed during the validation of transport tickets. Although this is fundamentally correct, the Dispute Chamber points out the link that exists between the validation data on the one hand and the MOBIB card and, via the 'Mobiguider', the customer database on the other hand. Both the MOBIB card and the customer database may process personal data of the special category, namely health data or social data that entitle one to a discount on the transport ticket. Given that personal data from this category may be processed and possibly linked with the validation data, the respondent must still take these sensitivities into account in its entire system to ensure data protection by design. However, since there are no elements in the complaint indicating problematic processing of data from this special category, the Dispute Chamber will not further address this potential risk and its possible implications for data protection by design.

104. The scope of the respondent's processing is very large. The respondent states that it is mandatory to validate in every vehicle used. This validation generates the GPS coordinates at that moment, the bus number, the bus line, etc. In the annual report of the respondent, which it refers to in its synthesis conclusion⁷⁰ and which is publicly available, it mentions 286,423,112 passenger trips for the year 2023⁷¹. This data is recorded and centrally stored for six months in two databases: the Mobiguider and the ODS. Of all these trips, trips are recorded...

70 Synthesis conclusion of the respondent, paragraph 41.

71 The 2023 annual report of De Lijn states that 286,423,112 passenger trips were made in 2023. <https://assets.ctfassets.net/32fmeyn9t08i/444Zlxiw2wOleKiqLz1rlz/47a65f52b1381bc0a48a8f04c350fd9e/jaarverslag-2023.pdf>, p. 22.

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for which a subscription was used linked to the identity of the traveler, since the respondent claims that the Mobiguider is linked to the customer database. The same annual report mentions 671,821 subscriptions in 2023. After six months, these trips are pseudonymized, after which they are additionally stored for five years in a third database. The complainant clearly demonstrates with his table of validation data that his travel habits can be very precisely inferred from this validation data. Given that this is maintained for the last six months, the complainant's movements are very predictable. It is this predictability that is intended and promoted by the respondent in the context of the 'tailored travel' service when it states in its request for consent: "Receive messages about arrival times, delays, and changes. This is based on data about your trips, purchases, and current location." During the hearing, the respondent stated: "The 'tailored travel information' service is carried out entirely via the Mobiguider based on the same processing of personal data." and "The granting or withholding of consent only concerns receiving additional information about the travel habits of the traveler." The Dispute Chamber notes that the same can be done for all 671,821 subscribers who use the services of the respondent and who have or have not given consent for the 'tailored travel information' service.

105. The context, which influences the expectations of the data subject, was already analyzed in 2010 by the CBPL in its recommendation regarding the use of the e-ticketing system by the respondent. Although a subscriber, such as the complainant, may expect that his personal data will be processed for ticket management, fraud management, technical management, statistical management, and possibly customer management and direct marketing, the CBPL has made it very clear: "In this regard, the Commission is of the opinion that companies may not process personal data, either directly or indirectly, that would allow tracking the route of users based on their electronic transport ticket."

106. The objectives are clearly defined in the various legislative texts, as also argued by the respondent. Each of the four objectives and the 'tailored travel information' service must be taken into account in the design and standard settings.

107. Regarding the 'risks of varying likelihood and severity for the rights and freedoms of natural

persons associated with the processing', the respondent referred in the documents to 'deliberation 33/2011'. In this document, it is stated three times in very clear terms that it is not permitted to track the route of the traveler based on their transport ticket: "The Committee also notes in this context that the application indirectly mentions that 'anonymized' data analyses will take place. It emphasizes that processing for this purpose – namely statistical management – must always be based on truly anonymous data." and "The Committee emphasizes first that the requested data must not be processed in a way that would allow tracking the route of holders of the MOBIB card." and "The Committee demands that these recommendations be effectively complied with – in particular the recommendation that companies may not process personal data, either directly or indirectly, that would allow tracking the route of users based on their electronic transport ticket – [...]"

108. The EDPB guidelines regarding data protection by design and by default also point to processing with high risks for which a data protection impact assessment is mandatory. In Article 35, the Data Protection Authority was granted the authority to conduct additional assessments.

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processing

with

potential

high

risk

for which

a

data protection impact assessment had to be prepared, to be determined. One of those processing activities is:

"7. when there is a large-scale and/or systematic processing of telephony, internet, or other communication data, metadata or location data of or traceable to natural persons (for example, wifi-tracking or processing of location data of travelers in public transport (emphasis added)) when the processing is not strictly necessary for a service requested by the data subject;"⁸³

109. Finally, the EDPB has also expressed itself by way of example regarding the use of statistical information by public transport companies in its example 2 concerning minimal data processing:

"A public transport company wishes to collect statistical information based on the routes of travelers. This is useful for making informed decisions about changes in public transport schedules and for good route determinations of trains. Travelers must scan their ticket through a card reader each time they enter or exit a means of transport. After the data controller has conducted a risk assessment regarding the rights and freedoms of travelers in relation to the collection of their travel routes, it determines that, when travelers live or work in sparsely populated areas, it is possible to identify them based on individual routes thanks to the identification code of the ticket. Since it is not necessary for the purpose of optimizing public transport schedules and the route determination of trains, the data controller therefore does not retain the identification code of the ticket. At the moment the journey is over, the data controller only retains the individual travel routes, so that it is not possible to identify journeys linked to a single ticket, but only information about separate travel routes. If there is still a risk that a person could be identified solely by their travel route in public transport, the data controller takes statistical measures to mitigate the risk, such as omitting the start and end of the route."⁸⁴

⁸³ Decision of the General Secretariat No. 01/2019 of January 16, 2019, regarding the adoption of the list of

processing activities for which a Data Protection Impact Assessment must be carried out in

accordance with Article 35.4 of the General Data Protection Regulation (SECR-AR-2019-001) can be found at <https://www.gegevensbeschermingsautoriteit.be/publications/beslissing-nr.-01-2019-van-16-januari-2019.pdf>, p 4.

84 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, p 25. The Dispute Chamber notes that this example was already included in the guideline of November 13, 2019, of which the current version is an update.

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110. The Dispute Chamber finds that it should have been very clear to the respondent that tracking the complainant's route posed a serious risk to the rights and freedoms of the complainant and consequently required specific technical and organizational measures. The EDPB states it as follows:

“When conducting the risk analysis for compliance with Article 25, the data controller must identify the risks to the rights of data subjects that entail violations of the principles, and determine how likely and how serious these are, in order to implement measures that effectively mitigate the identified risks. A systematic and thorough evaluation of the processing is essential in conducting risk assessments.”⁸⁵

111. In Article 25.1 of the GDPR, there is also a time aspect: “in determining the means of processing”

and

“in

the

processing

itself.”

The

determination

of

the means of processing dates back to before 2016, when the concept of data protection by design and by default was incorporated into the GDPR. However, it is the obligation of the data controller to adapt its systems to the new regulations, namely the GDPR, since 2018. The EDPB articulates this in its guidance as follows:

“This means that legacy systems designed before the entry into force of the GDPR must be evaluated and maintained to ensure the implementation of measures and safeguards that effectively implement and protect the principles and rights of data subjects, [...]”⁸⁶

112. Based on these elements, the GDPR requires that the respondent take appropriate technical and organizational measures so that:

- on the one hand, in

the case of

data protection

by design,

the

data protection principles are effectively implemented and the necessary safeguards are built into the processing to comply with the GDPR and to protect the rights of data subjects, and

- on the other hand, in the case of data protection by default, in

principle only personal data that is necessary for each specific purpose of the processing is processed.

Assessment of Data Protection by Design and by Default

85 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, para. 30.

86 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, para. 38.

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113. Article 25.2 of the GDPR clearly states that: “in principle, only personal data that is necessary for each specific purpose of the processing shall be processed.” The EDPB articulates this as follows: “that, as a rule, only processing that is strictly necessary for the stated, lawful purpose is carried out. For this, data controllers must rely on their assessment of the necessity of the processing in relation to the legal grounds from Article 6, paragraph 1. This means that the data controller, as a rule, does not collect more data than is necessary, does not process the collected data to a greater extent than is necessary for the intended purpose, and does not retain the data longer than is necessary.”⁸⁷

114. The Dispute Chamber will examine for each objective of the respondent whether the necessity of the processing has been met based on the three elements of Article 25.2 of the GDPR. Furthermore, the respondent states in its synthesis conclusion that it aims for a “comprehensive and timely pseudonymization of personal data”⁸⁸ and additionally that pseudonymization is “one of the key measures taken by De Lijn specifically for the processing of validation data.”⁸⁹ The Dispute Chamber will also assess in this context whether the pseudonymization is carried out timely and comprehensively for each objective.

Processing of validation data for the purpose of validating, checking, and sanctioning transport tickets

115. The validation and an initial check are carried out on the respondent's vehicle. During the validation of a transport ticket, the validation device on the vehicle emits an auditory signal. From this signal, the driver can determine whether a transport ticket is valid or not, even though the driver does not necessarily intervene when an invalid validation is observed. The respondent argues that this presumption of control is important in the fight against fare evasion.

116. A second check may be carried out by an inspector on the vehicle, who can verify whether the traveler has a valid transport ticket, is the effective holder of that transport ticket, is entitled to a discount on the transport ticket, and has validated their journey correctly by reading the data on the MOBIB card. In the event of a violation, the validation data and personal data of the traveler are processed by the inspector to allow the respondent to issue a sanction.

87 Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default; version 2.0, adopted on October 20, 2020, paragraph 42.

88 Synthesis conclusion of the respondent, paragraph 67.

89 Ibid, paragraph 70.

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117. The respondent stated during the hearing that the validation data, along with the identification data of the traveler, are retained for six months in Mobiguider to allow for the handling of any potential infringement. The traveler in question is given one month to respond to any sanction following the determination of the infringement, after which the respondent hopes to have completed the procedure within the subsequent five months. The respondent notes that for these purposes, they have been granted a retention period of one year by the legislator, but they deemed this unnecessary and have reduced the period to six months.

118. Furthermore, the respondent states that it is not their practice to impose a sanction on the traveler for the first infringement: “In practice, De Lijn makes fines dependent on the specific case. Indeed, when it is established during a check by the control staff that the traveler has correctly validated the transport ticket during the past period – and the failure to validate can thus be considered an exception – this shortcoming will be overlooked. For this reason as well, De Lijn retains the validation data.” In the case of a second infringement within six months, the respondent would then proceed to impose a sanction. To be able to monitor this ‘recidivism after infringement,’ it is, according to the respondent,

also necessary to retain the validation data of all travelers.

119. In the event of a sanction, the respondent argued during the hearing: “a fine is registered separately in the respondent's systems so that it remains visible for more than six months and so that the personal data for this purpose do not need to be retained separately.” It is therefore not necessary to consult the personal data in Mobiguider for the control of ‘recidivism after sanction.’

120. The Dispute Chamber has already *prima facie* judged that the validation data can be lawfully processed for the purpose of validating, checking, and sanctioning transport tickets based on the legal basis of public interest. Since the personal data of the complainant were not collected for this purpose, the Dispute Chamber did not assess the principle of minimal data processing and assumes *prima facie* that the respondent does not process more personal data than necessary to achieve this objective.

90 Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

91 Summary conclusion of the respondent, footnote 9 on p. 14 and Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

92 During the hearing, it became clear that the respondent distinguishes between travelers who commit an infringement but have not yet received a sanction (recidivism after infringement) and travelers who commit an infringement and have already received a sanction (recidivism after sanction). See Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

93 Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

94 See paragraph 62 of this decision.

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achieve. Since the respondent stated during the hearing: “the processing of personal data is divided into two periods and in different databases: the first six months are used to verify the validity of the transport document and to impose any sanctions and utilizes the Mobiguider database and the validation data. After six months, the data is only processed in a pseudonymized manner using the other databases,” the Dispute Chamber will still assess the necessity of processing the validation data in the respondent's systems for this purpose in light of Article 25 of the GDPR.

121. To assess data protection by default settings, Article 25, paragraph 2 of the GDPR states that the “amount of personal data collected must be necessary for each specific purpose.” The Dispute Chamber rules that for the purpose of verifying and sanctioning, only the validation data and customer data at the time of the infringement and of the person who committed the infringement are necessary. To check for any ‘recidivism after sanction,’ the respondent does not rely, as mentioned in the hearing, on the validation data:

- since sanctions, according to the respondent, were recorded separately and therefore personal data from the Mobiguider is not needed to establish this recidivism (after sanction), and
- since the period for recidivism is one year, while the validation data is only retained for six months and is therefore insufficient.

122. The Dispute Chamber rules that the default setting to retain all validation data of all travelers for six months is not necessary to achieve the objective of validating, verifying, and sanctioning. The data of travelers who validate correctly and for whom no infringement has been established during a potential check is not necessary for the respondent to sanction fare evaders and to check for any recidivism. The practice of not immediately punishing ‘first offenders’ (‘recidivism after infringement’) is not a necessity for this objective of general interest and can therefore not justify processing more personal data than is necessary to achieve that general interest.

123. Regarding the extent to which the data is processed, the Dispute Chamber rules that it is not necessary to have a link to the customer database for all travelers who validate correctly and for whom no infringement has been established during a potential check. Regarding the duration for which this data is stored, it is for

95 Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 3.

96 Document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

97 See the discussion regarding this in document 34 of the inventory of the Dispute Chamber: Minutes of the hearing, p. 4.

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this objective does not require waiting six months before anonymizing/pseudonymizing their validation data for these groups of travelers.

Processing of validation data for the 'tailored travel information' service

124. After obtaining the traveler's consent, all validation data that enters the Mobiguider will be monitored and analyzed for a longer period to provide the traveler in a timely manner with accurate information about his or her usual travel route, in combination with service data from the respondent itself. The Dispute Chamber establishes that only the validation and customer data of travelers who have given consent for this service are necessary.

125. The Dispute Chamber rules that the default setting to retain all validation data of all travelers for six months is not necessary to offer the 'tailored travel information' service. The validation data of travelers who have not given consent for this are not necessary for the respondent to provide this service. Consequently, the Dispute Chamber rules that it is also not necessary to have a link between the customer data and the validation data of travelers who have not given their consent, and that it is not necessary to wait six months for their validation data to be anonymized/pseudonymized.

Processing of validation data for statistical purposes

126. In order to comply with the obligations of the public services contract with the Flemish government regarding statistical data, the respondent requires every traveler to validate their transport ticket upon boarding a vehicle. This contract states: "De Lijn commits to improving its knowledge and management of passenger flows, and to increasing the reliability of statistical data regarding passenger numbers, occupancy rates, passenger kilometers, ... using the most suitable technologies."⁹⁸ The Dispute Chamber already ruled in paragraph 88 that there is no violation of data minimization, even though the identification number of the MOBIB card is also processed.

127. The legislator has imposed the following for this processing: "Insofar as the data mentioned in the first paragraph, 3°, contain personal data, these shall be anonymized as much as possible and, in subordinate cases, pseudonymized."⁹⁹ However, the respondent states that anonymization, as requested by the legislator, is not possible and that it relies on pseudonymization for the entire processing: "Although preference is given to the

98 Document 26 from the respondent's bundle: Public services contract between De Lijn and the Flemish government – 2023-2027, p. 25.

99 Article 37, §3, paragraph 2 of the Decree concerning basic accessibility of April 26, 2019.

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Anonymization of these personal data was, however, impossible for De Lijn, as this would not allow for determining how often a traveler uses a transport ticket (for example, a subscription); information that De Lijn uses to adjust its transport offerings (e.g., fare modules) and to meet the accuracy requirements of the Flemish government. The Dispute Chamber establishes that for the specific purpose for which anonymization is not possible, only the identification number of the MOBIB card is necessary. The respondent does not convincingly demonstrate that the other validation data, such as the time of validation, the GPS coordinates of the validation location, and the route or the involved vehicle, are necessary for this specific requirement of accuracy or to adjust the transport offerings. It is precisely this location and route data that makes it possible to "trace the trajectory of users based on their electronic transport ticket," which the CBPL has ruled in 'deliberation 33/2011' is not permitted.

128. The Dispute Chamber notes that the CBPL, when granting the authorization, assumed that "The registrations are processed anonymously" and "The Committee also notes in this context that the application mentions in passing that 'anonymized' data analyses will take place." Based on this assumption, "the committee emphasizes that processing for this purpose – namely statistical management – must indeed always be based on truly anonymous data." Regarding the pseudonymization of personal data after the validation of the MOBIB card, the Dispute Chamber notes that the respondent, in her response to the complainant dated October 31, 2023, states, "We can only

provide your validations from the last 6 months because we only keep older validations in pseudonymized form." and further in the email, "We keep your validations from the last 6 months non-pseudonymized based on a task of general interest." The Dispute Chamber finds that the respondent does not comply with the requirements of 'deliberation 33/2011', nor with the decree insofar as it stipulates that "as much as possible" should be anonymized.

100 Synthesis conclusion of the respondent, paragraph 70.

101 Deliberation RR no. 33/2011 of May 18, 2011, regarding 'application of the Flemish Transport Company - De Lijn for the authorization granted by Royal Decree of September 5, 1994 – which has already been expanded in deliberations RR nos. 04/2006 and 39/2007 – to be extended and to gain access to the photos stored in the Register of Identity Cards and the Register of Foreigners' Cards (RN/MA/2011/009), paragraph 9.

102 Ibid, paragraph 1.

103 Deliberation RR no. 33/2011 of May 18, 2011, regarding 'application of the Flemish Transport Company - De Lijn for the authorization granted by Royal Decree of September 5, 1994 – which has already been expanded in deliberations RR nos. 04/2006 and 39/2007 – to be extended and to gain access to the photos stored in the Register of Identity Cards and the Register of Foreigners' Cards (RN/MA/2011/009), paragraph 9.

104 Ibid.

105 Document 15 in the respondent's file: Email De Lijn to Complainant dated October 31, 2023.

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129. The Dispute Chamber rules that the default setting to process all validation data of all travelers is necessary to achieve the objectives regarding statistical data. However, the Dispute Chamber rules that it is not necessary to link this validation data to the customer database at any time. Furthermore, the Dispute Chamber finds that the respondent does not timely pseudonymize the validation data and does not proceed to anonymize certain data - although this is indeed possible and mandated by the legislator.

Processing of validation data for the objective 'efficient operation of public transport services'

130. The Dispute Chamber has already ruled in paragraph 72 that the respondent does not convincingly demonstrate that the validation data is necessary to achieve this objective, as it can fully rely on the statistical data calculated for the statistical objective.

Processing of validation data for the objective 'promoting public transport'

131. The Dispute Chamber has already ruled in paragraph 73 that the respondent does not convincingly demonstrate that the validation data is necessary to achieve this objective.

II.7.4. Conclusion: violation of Article 25 of the GDPR

132. The Dispute Chamber finds a violation of Article 25 of the GDPR due to:

- The linking of the validation data of travelers for whom no violation of the transport conditions was established and who have not given consent for the service 'customized travel information' to the respondent's customer database,
- The failure to timely pseudonymize the validation data of travelers for whom no violation of the transport conditions was established and who have not given consent for the service 'customized travel information', and
- The failure to anonymize the validation data that is not necessary for the specific purpose of accuracy or to adjust the transport offerings (identification number of the MOBIB card).

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II.8. Principle of transparency (Article 5.1.a), 12, 13, and 14 of the GDPR) regarding the validation data

133. In accordance with the transparency principle from Article 5.1.a) of the GDPR, the information from Article 13 and/or Article 14 of the GDPR must be provided to the data subject in accordance with the modalities of Article 12 of the GDPR before or at the latest at the time of the collection of the personal data.

II.8.1. Complainant's position

134. The complainant finds no information regarding which personal data is processed when he validates his transport ticket with his MOBIB card or which personal data is stored on the chip of the MOBIB card.

II.8.2. Respondent's position

135. In the third argument of her synthesis conclusion, the respondent argues that the transparency obligation has indeed been met, specifically through the privacy statement available on the respondent's website. The respondent attaches version 3 of July 8, 2020, of the privacy statement as document 23 in her bundle of documents.

136. In this privacy statement, under the title "What data does De Lijn collect," it is mentioned that "travel information such as the location and time of your trips with De Lijn" is processed.

II.8.3. Assessment by the Dispute Chamber

137. Firstly, the Dispute Chamber notes that the respondent has published a comprehensive privacy statement in steps on her website. In this privacy statement, the 'travel information' is mentioned on the first page under the collected personal data. This 'travel information' consists of the location and time of the trips taken by the traveler. The Dispute Chamber finds that the respondent refers to the validation data as defined in this decision with the term 'travel information.'

138. In a second step, the processing is divided by theme. The Dispute Chamber notes that under the title 'using transport tickets,' the 'travel information' is no longer mentioned, even though this information is collected during the use of the transport ticket. The respondent states in this section: "De Lijn does not check which individual customer uses public transport." This contradicts the validation table that the complainant has submitted in his documents, which clearly shows where this individual customer has used the public transport offered by the respondent.

139. Under the theme 'contactless payment,' the term 'travel information' is used in the case of contactless payments: "We store your payment data and travel information based on contactless payments for up to 13 months after the use of your card, unless you have an outstanding debt." The Dispute Chamber finds that this 'travel information' falls outside the scope of the complaint because the complainant does not pay contactlessly for his trips.

140. Under the theme 'market research and market analysis,' of which the Dispute Chamber has previously established that the validation data can be processed lawfully, the term 'travel information' is not used. The respondent describes the validation data in this theme as: "data on the use of transport tickets," without further explaining what this data entails. Further on, the Dispute Chamber reads that the origin of this data is described as: "We collect this data during the duration of your customer relationship with De Lijn." The Dispute Chamber also notes here that no connection is made with the validation data or the 'travel information' as mentioned in the privacy statement.

141. Regarding the personal data stored on the chip of the MOBIB card, the Dispute Chamber notes that this is not mentioned in the respondent's privacy statement, although the 'general terms and conditions, valid from September 1, 2022,' clearly state: "The MOBIB card and the data on the chip are the property of [the respondent]."

142. The Dispute Chamber notes that the complainant did receive a response from the DPO in an email dated February 26, 2024, to his question regarding which personal data is stored on the chip of the MOBIB card.

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143. Article 12 of the GDPR stipulates that the data controller must take appropriate measures to ensure that the data subject "receives communication regarding the processing in a concise, transparent, understandable, and easily accessible form and in clear and plain language." The Dispute Chamber finds that the communication from the respondent regarding the processing of the validation data is not transparent. The respondent does define the validation data, in this case as 'travel data,' but uses different terms and descriptions throughout the privacy statement for this data, making it impossible for the complainant to know exactly what happens to their validation data/travel data. Furthermore, the privacy statement does not mention the data processed on the chip of the MOBIB card, while the respondent is indeed the data controller for this data.

II.8.4. Conclusion: violation of Article 5.1.a) of the GDPR and Article 12 of the GDPR

144. The Dispute Chamber finds a breach of the transparency principle of Article 5.1.a) of the GDPR, read in conjunction with Article 12 of the GDPR due to:

- lack of clarity regarding the processing of the complainant's validation data and
- the absence of any information regarding the personal data processed on the chip of the MOBIB card in the privacy statement.

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III. Corrective Measures and Sanctions

III.1. The Severity of the Breach

145. The respondent processes personal data of identified travelers on a large scale, specifically travelers with a subscription (of which the complainant is a part), who use its services.

146. The concrete negative consequence, or the 'risk' for the complainant, and by extension for all identified travelers, is that their routes and consequently their travel habits can be reconstructed for a period of six months based on this data. It should have been clear to the respondent, especially considering the already existing recommendations, advice, and guidelines, that this risk was unacceptable in the context of its activities as a public transport provider, unless a traveler would give consent for this.

III.2. Corrective Measures

147. According to Article 100 of the WOG, the Dispute Chamber has the authority to:

- 1° dismiss the complaint;
- 2° order the discontinuation of prosecution;
- 3° order a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the data subject be informed of the security issue;
- 8° order that the processing be temporarily or permanently frozen, limited, or prohibited;
- 9° order that the processing be brought into compliance;
- 10° order the rectification, limitation, or deletion of data and the notification thereof to the recipients of the data;
- 11° order the withdrawal of the recognition of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;

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14° to order the suspension of cross-border data flows to another State or an international institution;

15° to transfer the file to the office of the Public Prosecutor of Brussels, who will inform it of the outcome that is given to the file;

16° to decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

148. Now that the Dispute Chamber has established that the respondent is violating its obligation of data protection by design and by default settings and has not communicated transparently about the processing of the entrusted data, it is necessary to take corrective measures against the respondent.

149. In the context of effective legal protection under Article 47 of the Charter of the European Union and the effective enforcement that the legislator aims for with the GDPR, it is primarily necessary to order the respondent to organize the processing of the personal data of the complainant, and by extension of all identified travelers, in accordance with the requirements of Article 25 of the GDPR. The Dispute Chamber aims with this order to strike a balance between the continuation of lawful processing of personal data in the public interest and effective protection of the rights and freedoms of the data subjects whose data is being processed.

150. The Dispute Chamber is sensitive to the complexity of the respondent's processing in light of the various objectives and legal grounds and for this reason grants the respondent one year from the

notification of this decision to adjust its systems and to demonstrate that its systems comply with data protection by design and by default settings, as provided for in Article 5.2 in conjunction with Article 25 of the GDPR.

151. Given the specific context of this file, the Dispute Chamber believes that there is no ground to impose a fine on the respondent at this stage. In this regard, the Dispute Chamber takes into account the presumed investments that the respondent will have to make in determining the corrective sanctions.

152. Since the respondent did not communicate transparently regarding the processing of the personal data of its travelers and these travelers are therefore unable to know how their personal data is actually being processed, the Dispute Chamber finds it appropriate to publish this decision on its website without shielding the identity of the respondent. With the publication of this decision and the identification of the respondent, the Dispute Chamber ensures transparency.

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Such an appeal can be lodged by means of a notice of opposition that must contain the mentions listed in Article 1034ter of the Judicial Code. The notice of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

(get). Hielke HIJMANS

Chairman of the Dispute Chamber

The notice must state, under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, where applicable, their capacity and their national register or company number;

3° the name, first name, residence and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

The notice with its annex must be sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.